

Addictive Law

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I. Introduction

This Article begins with the observation that the amount of law, as well as its reach, has increased over time. “Law” might refer to the number of cases or statutes, the number of lawyers or government-employed lawyers and regulators, the time and effort spent abiding by legal rules, or the number of paid law-enforcement officials. All these have grown rather regularly over time. We might look at overall numbers or per capita figures, adding together local and national figures in one or many societies. There are a few data points to offer, but for the purpose of this Article, I hope readers will simply have observed, or will believe, that law is a growth industry and an increasing feature of most societies.² Regulation is more common than deregulation. Why is this so? It is unlikely that law is a kind of good for which more is always better. There are many explanations for its growth over time. I begin with a quick description of the most sophisticated explanation, and then turn to a new explanation that is the subject, and I hope the contribution, of this Article. As the title suggests, it is not good news.

Economists might be attracted to the simplest of explanations: When the consumption of a good increases over time, the cost of its production has probably decreased, demand for it has for some other reason increased, or both. This is how we would explain the remarkable and regular increase in something like the number of smart-phones over recent years. But the cost of law has plainly increased rather than decreased, likely because it is a service-intensive good, not easily amenable to technological change. We need to understand why demand for law has regularly increased. Moreover, good innovations usually reach some optimal size or number. Even smart-phones are leveling off, despite reduced cost. There is no shortage of examples of innovations that became wildly popular, but that eventually matured into a steady state that might be optimal, or caused by other forces. As substitutes were developed, they eventually declined. Trains were a good invention, but their number, earnings, and employment figures have not continued to grow over time. And if the appropriate comparison is to services rather than physical goods, formal education is an example of something we value but do not want to see maximized. It is easy to imagine that we have, or will soon have, too many national holidays, too many unions, too many visits to doctors, excessive consumption of drugs – and more law than is optimal.

II. Law’s origin and growth

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² It is easy to find flaws with measurement techniques, but the overall picture seems clear. For example, the Code of Federal Regulations has more than doubled between 1975 and 2013 (from 71,224 pages to over 175,000); the *number* of restrictions on the finance and insurance industries increased 32% from 1998 to 2012; the Federal Trade Commission is said to have dramatically stretched its reach over finance and insurance since 1998; and the EPA has dramatically increased the number of oil and gas regulations. See “Measuring Regulation,” Economics21, <https://economics21.org/html/measuring-regulation-1089.html>. But each of these measurements raises many questions. Moreover, many regulations might be designed by industries to discourage competitors.

A superior and familiar explanation for the growth of law takes us back to its origins. The conventional story is that hunter-gatherers started developing agriculture and this allowed denser populations.³ As people were able to live together in optimal units, for learning and innovation, they had time beyond what they needed for survival activities. They developed art and other means of expressing themselves and connecting to one another, though interactions probably also enhanced their chances of survival and procreation. Over time they developed superior methods of fishing, hunting, and building, and they also expanded languages and other means of passing on their innovations and cooperative activities.⁴ Other animals also communicate and learn, but humans, with their bigger brains, probably developed genetic material that favored learning through observations and communication. In time, standards of living rose, and humans thrived in various climates, occasionally crossing boundaries and picking up new skills and methods, with just occasional losses of knowledge. Humans formed cities, and in groups they learned and advanced even more.

As these groups lived together they competed but also, eventually, thrived by developing mechanisms that reduced violence. Among other things, they created property rights, rules against stealing and murder, and so forth.⁵ These rules were often enforced by third parties, like tribal elders or spiritual leaders, and eventually took the form of courts and formal law-enforcement officials. The rules reduced the resources spent on defense, or at least private defense aimed at protecting the fruits of one's labor. There are twists to this story, and other theories about property rights and the emergence of art and other form of expression, but this is not a paper about physical and cultural evolution. The point is that law may grow because we increasingly live together in order to gain communication and inter-generational advantages. Both farming and crowded enclaves increased the need for various property rights, schools (public goods), and more. Meanwhile, pollution and other externalities also generated a greater reliance on law. From this perspective, law is a function of crowding and development, and there is no reason to expect it to level off, any more than there is reason to expect cities to stop multiplying and growing.

III. Outsourcing to legal institutions

But I want to offer another, perhaps parallel, explanation for the emergence and growth of law. Along the way, it will be apparent that law changes preferences about law itself. The argument here is that people come to rely on law, and they come to think it will solve most problems. Law grows because people become addicted to it, and law itself alters their preferences in ways that are as likely to be inefficient as they are to be efficient. To some degree, an increase in law is surely efficient, as when it reduces violence. But there can be too much law, just as there can be too much of many things we like in smaller amounts and then cannot resist overindulging. Few people want to outsource everything to law, and most of us recognize the attraction and efficiency of self-help. It is more efficient to put one's children to bed, rather than to have the government create a

³ The claim is contestable, to say the least, and the literature is vast. But everyone seems to agree that agriculture and human density are related. For just one discussion, see Robert M. Adams, *The Evolutions of Urban Society* (1966);

⁴ Joseph Henrich, *The Secret of Our Success: How Culture Is Driving Human Evolution, Domesticating Our Species, and Making Us Smarter* (2016).

⁵ Saul Levmore, *Property's Uneasy Path and Expanding Future*, 70 *University of Chicago Law Review* 181 (2003). See also Robert Nozick, *Anarchy, State, and Utopia* (1974). For an alternative account arguing that a third factor, technological process, leads both to declines in violence and improved property rights protection, see Nils-Petter Lagerlöf, *Violence and Property Rights*, 37 *Journal of Economic Dynamics and Control* 312-328 (2013)

bureaucracy designed to come in and take on the task. Families do not outsource that activity, except on occasion to babysitters or neighbors, and a government steps in only when a family is extremely dysfunctional. We do outsource education to government, and that may or may not be efficient, but the point is that every society has pockets in which there is too much law. Critically, once there is outsourcing or even over-indulging, it is rare to go back to what might have once seemed the preferred level. I recognize that this raises the skeptical question of how we know that the old preference was the correct one, but I am setting this question aside to make the point that law changes preferences in a way that at least ex ante, people would have thought inefficient and undesirable.

If you tell me in an early time period, T1, that I will prefer to be a vegetarian in T2, or that I will at that future time like spicier foods more than I do now, in T1, I would not resist and say that I wish I could stop these transformations, because I recognize that preferences can change, and that variety can indeed be the spice of life. But if you tell me in T1 that I will likely gamble or take drugs ten hours a day in T2, then in T1 I will take steps to prevent the emergence of that future self. Most preference changes caused by law fall in the first category. Thus, law might impose taxes, tort liability, and worker protection laws that make me prefer a different kind of home, means of transportation, or type of business activity in T2 than I preferred in T1, and would have thought in T1 that I would continue to prefer in T2, but then law can change my preferences about these things by T2. Even if I am aware of these possibilities and their causes in T1, I would not take steps to prevent the change. Moreover, law will change as circumstances do so, and one reason not to bind my future self is that it is hard to know whether it is pure preferences or circumstances that have changed. I might wager against changes in my preferences, but I would normally not want to deny my future T2-self its capacity to fulfill its preferences, even if I could be sure that it was my preferences rather than external circumstances that change. The same is not true for what we call addictions.

The addiction idea can be emphasized with simple examples of interactions among neighbors, and the growth of tort law and then police enforcement. The argument is then easily applied to environmental and many other areas of law. The simple example of neighbors is a good starting point, because it will raise few objections across political lines. Still, the example will take us to privacy law and other matters that will raise political hackles.

Imagine a case where ten families are disturbed by a very loud neighboring family. Three hundred years ago, gossip might have played a useful role in quieting down neighbors during the evening hours. Alternatively, one neighbor might have spoken to the head of the noisy, nearby household, and suggested that noise was making it hard for children to sleep. In a delicate case, a delegation of neighbors might have formed to increase the courage of the intervening parties. A few unskilled neighbors might have screamed, threatened, or thrown rocks to convey the same message, but these communications would have been known to increase the chance of retaliation or feuding. My own apartment building, constructed about one hundred years ago, has always been home to twenty families, and there is no known example of anything approaching violence – or brilliant bargaining as anticipated by Coase. It is extremely likely that social conventions kept noise at a low level; there were musical instruments and probably more parties than today, but few noisy electronic instruments or televisions. The walls are thick, but there might well have been a norm not to practice piano or tuba playing late in the evening. Midway between that period and the

present day, something of a collective-action problem developed, perhaps because parents became more permissive or inattentive. A few noisy and loud parties, with visible drugs and sexual activity, were hosted by teenagers. This brought about additions to the building cooperative's bylaws. Unsupervised parties were forbidden in storage rooms, for instance, and displeased residents began taking their complaints to the cooperative's elected governing board, which fortified the organization's rules. By the time my family moved in, about twenty years ago, we could not purchase the shares associated with our unit without agreeing to rules about noise, exclusion of pets from the backyard and from the front elevator, restrictions on children's parties, as well as grilling and party activities in the yard. I will not claim that these numerous rules were inefficient, and indeed I have some confidence in the wisdom of the crowd – in this case a majority vote of elected directors. Instead, what I find remarkable is the growing inclination to avoid one-on-one discussions and requests, both to avoid conflict and to free-ride on the work of others. Over time, and to this day, the solution was to resort to an elected board and to rely on unpaid board members who spent considerable time in meetings in order to address individual problems as they arose, and to fashion solutions in ways that would not appear to gang up on a single person. Rules were fashioned in ways that appeared fair because they applied across the board to all residents; in any event, they were legally binding. If the rules are inefficient, it is because no one seems to take into account the value of the time spent by the regulators, and also by the difficulty of taking intense preferences into account, while enacting rules that on the surface treat all residents equally. Law is preferred over individual confrontation, and also over market solutions. There is no doubt that most of this was previously accomplished privately; if it was done publicly, it was not with rules (or private lawmaking), but through shaming and evolved social norms. Over time, norms have been codified, or outsourced to rulemaking, by elected officials who have some contractual power to impose (monetary) assessments on violators. Presumably, a neighbor could have gone to court and brought a tort law claim, but this would have been costly and perhaps embarrassing for the upscale building as a whole; it might even have reduced property values. It is interesting that the change might have come from both directions. One who is offended has reason to go to the elected authorities, but the one who offends might prefer to be regulated by an impersonal majority vote rather than a personal confrontation, which can make future relationships difficult.⁶

In the more downscale middle-class neighborhood I lived in as a child, there was certainly no elected board. Self-help was more common; people climbed poles to turn off annoying lights, and crossed boundaries to cut disturbing tree branches, but face to face confrontations were rare, though adults felt free to reprimand neighbors' children. I can recall just one occasion on which a neighbor called the police for help, when the problem might have been solved through personal discussion.

Just as the presence of my current building's board has encouraged residents to rely on it to solve their problems, rather than to have personal discussions with perceived offenders, so too the presence of law has discouraged personal resolutions of perceived problems in the larger society

⁶ These changes in preferences point to the difficulty in assessing the efficiency of change. If people value the ability to avoid confrontation, then these changes (in both directions) are efficient, no less than law's ability to prevent murder or theft. It is simply more difficult to assess at T1 what is efficient, because preferences and circumstances will be different at T2. Nevertheless, the text proceeds with the idea that at T1 people might agree that they would much prefer fewer murders and a lower rate of feuding, but at T1 they would be unlikely to say that they would prefer more law and fewer personal discussion or confrontations at T2, so that the outsourcing to law, and its addictive quality, with respect to things like noise and pollution, is more likely to be inefficient.

outside of a building or small community. I would not be surprised if my old neighborhood's residents now call the police or bring lawsuits more often than before. And even in my present building, residents might in the future resort to higher, yet more formal sort of law, and sue one another or the building's board of directors. Outside of an apartment building or small neighborhood, the move from private ordering to formal law is a more serious matter. Just as the presence of my building's board of directors has, perhaps unknowingly, encouraged residents to rely on it to solve their problems, rather than to have personal discussions with perceived offenders, so too the presence of law has discouraged personal involvement when witnessing polluting activity, shoplifting, violence, and other harmful activities.

There are many reasons for this outsourcing to elected groups, and often to legally empowered agents. Consider first the simpler situation where a nearby table in a restaurant is offensively loud, or a fellow passenger on a train begins to smoke a cigarette. In the first case, very few people would ask the noisy group if it could please reduce the level of noise. Most would say nothing, and some would ask the server if it were not possible to ask the group to quiet down. One reason is that the disturbed party fears an unpleasant confrontation or even some kind of retaliation. The restaurant might want to hear about the objection, because it might lose future business if the place is perceived as unruly. Note that people are much more likely to ask if a sound system could be turned down, for there is no fear of retaliation. In both cases, there is a collective-action problem of two kinds. A single patron might hope that someone else will complain and, second, he or she might not know how to assess the group's preferences, or even the relative value of noise to the noisemakers, compared to his or her own taste for quiet conversation, made impossible by the rowdy patrons at another table.

To be sure, one building and one childhood neighborhood, and even our shared experiences in restaurants, do not add up to solid empirical evidence of the sort that some readers have come to expect. And yet, the argument here does rely on personal observations, along with the logic of collective action. The claim is not that all disputes were once solved interpersonally and that none is today. First, outsourcing neighbors' dispute resolutions to town officials, called "fence viewers," is an old development – and perhaps evidence that outsourcing to law is an evolved practice – dating to the seventeenth century, before spreading from Massachusetts to other states where roaming livestock caused disputes. This is an especially good example of the claim advanced here, because there is no collective action problem in a typical boundary dispute. And in modern times, even in my own building, there are certainly some face-to-face conversations and dispute resolutions. The observation is that there has been a dramatic change over time in the mix of self-help and law. I have tried to ask many people questions about their personal experiences, and most of what I hear corresponds to the claim made here; intervention is unusual while resort to legal authorities is now common. Moreover, note the difficulty of more rigorously obtaining empirical evidence. We can survey people today, though I am skeptical about survey evidence, but we can no longer survey people about their intuitions or behavior fifty or one hundred years ago. It is easy to gather evidence about the growth of law, but difficult to measure the decline in what I have called self-help, or personal confrontations and bargains.

Returning to inconsiderate patrons in a restaurant, and assuming it is correct to say that self-help is unusual, and even that it has changed over time, it should not be taken as evidence of an inefficiency. A restaurant is unlikely to suffer from a lack of information about noise levels. Put

differently, the restaurant would not offer to pay patrons to be the first to inform the manager of excessive noise. Employees can assess the noise levels without any assistance from patrons, and they are at least as likely as any one patron to assess the sentiments of the many silent patrons. Some people like lively places. A restaurant manager and owner might ask for information about food quality or service, but even here they can observe the preferences of many patrons better than can any single patron. The same is not true for noise in a building or in a neighborhood. There is no central authority or observer to decide when to intervene.

It goes without saying that the availability of law often causes individuals to prefer law over personal involvement. If I observe a couple screaming at one another in what appears to be a situation on the verge of physical violence, I can intervene by walking over and asking them: "Is there a problem?" or I might approach the aggressive person or couple and say: "You might want to know that another observer has called the police." But most people hesitate to intervene, because they fear violence at their own expense. Intervention has a cost, and over time most societies have come to rely on police forces, even though these come with their own, much discussed, problems. The favored interaction is to call on law, and hope that a cool-headed officer arrives in time. Note, again, that even the offender might prefer the police officer over a passer-by's intervention. The official is impersonal, and giving in to his or her instructions might save face compared to backing off when a mere fellow citizen, with no legal authority, intervenes.

In the event that an assault is already in progress, more of us might intervene, especially if we are joined by a group of friends who can overwhelm the perceived wrongdoer. However, many people would be especially unlikely to risk intervention, and they would, at best, call the police. There is a well-known collective-action problem here, because the greater the number of observers, the more likely each is to think that someone else has (in unobserved fashion) called the police. Law can encourage one form of intervention or another with "duty to rescue" laws, but the focus here is on the use of carrots rather than sticks.

The larger point is that problems that were once worked out at a personal level, whether interpersonally or with group dynamics, are now outsourced to formally empowered central authorities that can be captured in the expression "law." In some settings, this occurs through institutions like companies, universities, or even cooperative associations, with their own delegation of authority that is very much like civil and common law. Indeed, formal law is often used to enforce these institutional practices, or law makes clear that it will defer to them. The existence of these authorities, including courts and police, in turn causes people to rely on them and to increase their assessment and fear of personal risk. The availability of law causes us to prefer law.

There is a benefit to outsourcing to law or law-like authorities. We have outsourced our ability to interact, and especially so in crowded settings, just as we have outsourced other needs, like food preparation. People have come to prefer law or simply to disfavor personal involvement, just as many people have come to prefer prepared foods and even fast-food over homemade servings. Most citizens have developed a preference for law, much as many have developed a taste for celebrating events in restaurants rather than in homes. They relax or study in coffee-shops rather than at home. They may go to libraries rather than coffee-shops, preferring up-front taxation rather than a pay-as-you-go institution. The very presence of bars and coffee-shops encourages further

reliance on these institutions, not just because people learned to prefer them in T1, but also because bars and coffee-shops are good at advertising, offering complimentary products, and altering preferences so that young people now meet each other in, or outsource to, bars and Starbucks, instead of taking walks or excursions in their own cars. They might say they do this for reasons of safety, gender parity, or other reasons – just as people say they call the police rather than break up fights themselves because of safety and privacy concerns, but there is more to it. Institutions have changed their preferences. Legal institutions are often like Starbucks, preferring that customers become more attached and even addicted.

Can we predict a yet greater reliance on restaurants and coffee-shops in the future? Perhaps not, because the growth of these institutions might eventually make home-made meals and expensive, privately owned coffee machines special and more desirable. Wedding celebrations were once at home or in public spaces, and then they were often found in catering halls, and now many take place in carefully chosen destinations. It is hard to predict whether they will return to the intimacy of homes and familiar places of worship. These are matters of preference and social convention that may well be influenced by the available institutions, but it is absurd to insist that one form is more efficient than another. In contrast, law offers the opportunity to free-ride on other taxpayers, so it is much less likely that we have outsourced things to law that in the future we will once again assign to more intimate maneuvers.

There is room to push back on these observations and predictions. People may file more lawsuits against their neighbors now, but they also settle many cases, and we might think of settlements as self-help, once removed; indeed, many settlements, and especially private settlements, can be understood as reflecting a preference for privacy. But overall, perhaps because law is subsidized and somewhat predictable, it is easy to get addicted to it. The availability of police, causes people to prefer not to get involved when they observe a fight, and it certainly encourages people to call for help rather than to solve things on their own when they are disturbed by noise or pollution from their neighbors. It also causes parents to teach their children to call for help, from a teacher or police officer, rather than to try to be “heroes.” Various public-choice reasons make it difficult to reduce police forces and other elements of law, so that there is no external push back to self-help. Very few students intervene when they see a fellow student cheating on an examination; a small fraction will resort to “law” by telling the professor, just as some people might respond to observed shoplifting by informing the storekeeper. In all these cases, the presence of a central authority encourages yet more reliance on it. When our students are offended by insensitive comments made by fellow students, they resort to shaming but they also appeal to the Dean of Students, or the Director for Diversity and Inclusion, positions that were unknown one hundred years ago, and in one case even ten years ago. The presence of these authorities, or lawmakers after a fashion, seems to increase the preference for more rules, more intervention, and more legal officials.

These examples emphasize the fact that law is subsidized or at least pre-paid. It is supported by the government (or student fees) and, with respect to many controversies, it rewards (but also stresses) those who bring claims. If law subsidized wedding halls, we would be more confident that weddings would not return to the home turf.

IV. Law as an addiction

My focus here is on law's addictive quality. The availability of law encourages a preference for legal intervention and it has brought about the disfavoring of private interventions. It may also have brought about related alterations. I have hinted at the idea that the presence of law may have brought about a preference for greater privacy. Privacy was virtually unknown in small, tight communities, necessarily close because of the absence of vehicles and other means of transportation. Gossip and even out-casting were the important form of social control. In contrast, when we do not intervene in a brawl, because of fear or the availability of police, we also feed a taste for privacy; we do not want the storekeeper or teacher to reveal the identity of the person who (broke the norm and) reported the shoplifting or cheating. In a larger system, law often requires the identification of accusers, because it is less confident that accusations are accurate. The teacher knows the student who reports a wrongdoing and has the ability to assess its accuracy in several ways. A judge rarely has comparable information, and law must choose whether to reward accusers or penalize false accusations.

Returning to noisy neighbors, it is apparent that misbehavior that could often be handled by an individual is now delegated to a group, or a set of agents. A society can instead develop stronger social norms. Every long-term visitor to Japan observes that neighbors and friends on a commuter train communicate in hushed voices, certainly as compared to much louder counterparts in the United States. Theirs is a society that is more densely packed. It also has less wood and other natural materials to draw upon for constructing thicker walls. On the other hand, my limited observation is that Japanese neighbors are even less likely to confront noisy neighbors directly than are neighbors in the U.S. I cannot imagine them asking a restaurant employee to quiet down a loud group at another table. They are also less likely to rush to court with complaints about neighbors. In sharp contrast, confrontation in Israel, even among neighbors, is quite common. In my own building, one person regularly threatened to sue others. With all due respect to my own law school's obsession with Coase, I suspect that in none of these societies is it common for one neighbor to pay another to reduce the noise level after nine o'clock in the evening. No one in my building offered to pay our difficult neighbor to move elsewhere, though the building committee regularly adjusted rules to turn mere displeasures into things that were explicitly forbidden in the building's written rules. Some of these rules imposed economic costs on this disagreeable neighbor and, eventually, the family departed. I have already suggested that the couple seemed to prefer to be disciplined by the board of directors than by face-to-face confrontations, and that a brawler might actually save face through police intervention. This possibility is another way that the presence of law can create a preference for more law.

In Chicago, we would insist that our failure to negotiate can be blamed on a collective-action problem. We might also insist that there is a lurking moral hazard; if we pay people to tone it down or to control their teenage children, others might make noise they do not really value in order to be paid for a reduction. It would certainly be counterproductive to pay a brawler or aggressive person at a party to back off, and perhaps only an economist imagines that parents would pay their children to scream in order to extract payments from neighbors who would like to see more parental control. I prefer a public-choice explanation of why Coase does not seem to rule the day. Rather than paying our neighbor to be quiet or to remove windows that do not match the building's exterior, it is less expensive to go to a building committee or to the law and ask for a rule, and then for its enforcement against what an aggrieved party considers to be excessive noise, unruly behavior, or unattractive windows. There remains a collective-action problem, because it is not

costless to seek relief in this manner, and there are many affected neighbors, but it is likely to be less expensive to go to the law than it is to pay for quietude. If so, this may be an example of a growing addiction to law, but not to an inefficient addiction.

If the addictive quality of law is inefficient, it can be avoided by paying people to engage in self-help of the sort their ancestors regularly engaged in. This solution may be difficult to carry out in practice, but it is worth thinking about because it casts light on restitution law and related doctrines. If it is less costly for an individual to intervene when he sees a brawl than it is to involve the police (assuming we can encourage calls to the police when danger is at hand), and it is less costly for a store to act on private reports of shoplifting than to hire security guards, then it is puzzling that we do not find stores paying for information and governments paying for reports of impending violence. A conventional and perhaps sufficient answer is that when a reward is offered there is a greater fear of false reports, or even of collusion in order to gain rewards that can be shared. False reports may also increase racial profiling and other behavior that a society, and even a store, wishes to avoid. Parents usually discourage children from informing on one another, and they rarely reward “snitching” or “tattle tailing,” perhaps because they fear false reports or they recognize the value of group solidarity rather than perfect law enforcement.

Still, carefully drawn rewards can be useful. These rewards are a form of restitution. If I benefit my neighbors by confronting one difficult neighbor, and getting her to change her behavior, then perhaps I should be able to collect a reward from those who benefited. There are obvious measurement and collection problems, and perhaps it is not surprising that I have not heard of such rewards being offered, either *ex ante* or *ex post*, in any building. Nor do I know of a university that pays students who report on other students’ cheating behavior, sex crimes, or vandalism. But it is plausible that the government should try rewarding those who help it reduce expenditures on law enforcement. This is not the place to show how such a system might be designed, with an eye on preventing false reports. Indeed, the more difficult it is to design the system, the more convincing is the claim that law is addictive, and like most addictions, difficult to halt.

Outsourcing to police and legal institutions, but not to one’s employee, child, or student who could report wrongdoing by peers, suggests the more general question of when agents are used and when they are not. Police (or building committees) can be seen as agents who work for principals that in the past monitored, confronted, and disciplined in more direct fashion. Legal institutions are said to solve collective-action problems, but many of these problems could also be solved by rewarding private action. Much as lawyers are paid when they create a common fund,⁷ so too each of us could be rewarded when reporting crimes or intervening when neighbors are too noisy or are engaged in domestic abuse. In previous work about sexual assault, a co-author and I argued that rewards might make reports less credible, so that there might be a case for encouraging timely reports with penalties for non-reporting as a way of saving future victims from assaults by what are likely to be repeat offenders.⁸ There is no need to rehash that questionable idea here, for my goal is to draw

⁷ A classic starting point is John P. Dawson, *Lawyers and Involuntary Clients: Attorney Fees from Funds*, 87 Harvard Law Review 1597 (1974).

⁸ Saul Levmore & Martha C. Nussbaum, *Unreported Sexual Assaults*, 97 Nebraska Law Review 607 (2019).

attention to the fact that we might have too much law because of its addictive quality. One way to fight this addiction is to reward those who could resort to law but are, instead, helpful on their own. Another is to emphasize that law may have grown because of this tendency to outsource, and that this development may be inefficient, and something to criticize rather than to celebrate. Just as we fear that more wars occur because of the interest group of professional soldiers who seek promotions or expenditures in their self-interest, so too we should fear that police officers, lawyers, lawmakers, law students, and scholars who seek approval from law journals, favor legal solutions rather than private engagement. Lawyers have every reason to want more law, even when law's growth is inefficient. These interest groups may play a role in encouraging the addiction to law, rather than self-reliance or activity that benefits a community without reward. But in this Article, I have avoided a public-choice explanation of this kind and have instead drawn attention to the likelihood that the presence of law, and especially of subsidized law, has enabled a preference for more law and for less personal involvement. Your preference for more law might benefit me when I truly need legal intervention, but it might instead disadvantage me when I am forced to pay for your preference and when people develop a preference not to involve themselves in social problems, but rather to rely on agents.

V. Conclusion

Without question, the development of legal systems has made us better off. Law has decreased murder and other horrors, while it has increased cooperative investment and encouraged the efficient use of assets and talents. But law has an addictive quality, as it alters preferences and makes self-help, personal involvement, and teamwork less enticing. When a neighbor is noisy or pollutes, we begin to prefer lawsuits or other legal interventions rather than private discussion with the neighbor, and this is so especially when there is a collective-action problem associated with private confrontation. Several neighbors might be disturbed, but no one has sufficient incentive to do anything but turn to law, however inefficient this may be. The availability of legal intervention creates preferences that feed back to a support for more law, even when law is the inefficient alternative to other means of coping with negative externalities and other problems. Law creates a preference for law, even when this is inefficient – which is to say a preference for expansion of law that rational citizens would have, earlier in time, wished they could avoid.

Where money and constitutional wrongs are involved, law has developed a means of coordinating solutions through class actions, common-fund recoveries and other means. These may facilitate the efficient expansion of law. But the private inclination to appeal to law is often inefficient, and this Article has suggested that law might reverse its excessive influence on preferences for law itself, by allowing recoveries or offering rewards for private solutions to social problems that would otherwise encourage a growing addiction to law. A simpler change would be to encourage one another to get involved rather than to shy away from confrontation, but this is a cultural change beyond the reach of this Article and outside of law.